



File No.: EXP202310123

RESOLUTION OF

WARNING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on July 11, 2023. The complaint is directed against an individual identified as B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

The complainant states that he is a neighbor of the respondent and that the latter has installed two cameras in his home that, due to their location and orientation, are capable of capturing the property of the complainant, adjacent to that of the respondent, although one of the cameras was removed, a camera remains installed in a window, next to a flowerpot, which is directed towards the complainant's home, without authorization for doing so.

He provides images showing the location of the cameras and a situational plan of these and the properties of both (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was duly forwarded to the respondent in a timely manner, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: On October 11, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

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REPORT OF PRELIMINARY INVESTIGATIVE ACTIONS

Date on which the reported facts occurred: July 11, 2023

On October 11, 2023, in procedure AT/03815/2023, the Spanish Agency for Data Protection agreed to carry out the present investigative actions regarding the previously described facts.

INVESTIGATED ENTITIES

During the present actions, the following entities have been investigated:

A.A.A. with NIF ***NIF.2 residing at ***ADDRESS.1

RESULT OF THE INVESTIGATIVE ACTIONS

After reviewing the documentation contained in complaint REGAGE23e00046660901, specifically the image "vista_pajaro.png," a search was conducted in the land registry to locate the property in question and obtain its cadastral reference.

On November 7, 2023, within the framework of the present investigative actions, a request was made to the property consultation service of the land registry regarding the ownership of the following property:

Cadastral reference: (...)

Location: ***ADDRESS.2

On November 7, 2023, as indicated in the land registry report, the owners of the property were identified:

- ☐ A.A.A., with DNI ***NIF.2, owner of 50.00% of the property
- ☐ C.C.C., with DNI ***NIF.3, owner of 50.00% of the property

FIFTH: On August 31, 2023, a letter was received from the respondent stating the following in relation to the facts subject to transfer:

"There is only one camera installed facing the outdoor area of the property where there is access and a parking area owned by the undersigned and her husband. It is necessary to emphasize that this camera has been installed for more than six years for the purpose of monitoring access to the home in a rural area.

"The cameras do not capture public roads but the land surrounding the home. Recently, there has been a dispute regarding the ownership of the land with relatives of her husband, which is the reason for the complaint filed, which will be subject to the corresponding action before the Courts to obtain a..."

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Resolution supporting the ownership of the land that is currently being questioned.

SIXTH: On July 24, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the party being claimed, for the alleged infringement of Article 5.1 c) of the GDPR, classified under Article 83.5 of the GDPR.

SEVENTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on 07/08/24 as recorded in the acknowledgment of receipt in the file.

According to the Official Postal Service, as evidenced in the acknowledgment included in the administrative file, it was collected by an individual identified as D.D.D.

In light of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven:

PROVEN FACTS

First. The facts arise from the complaint dated 11/07/23 through which the installation of cameras that are "pointed towards their private property" is reported.

Documentary evidence is provided that verifies the presence of devices in the windows of the party being claimed (Annex I).

Second. It is established that the main responsible party for the video surveillance system is B.B.B. with NIF ***NIF.1, who has not demonstrated the legality of the system.

Third. It is established that a video surveillance device is installed that is oriented towards the claimant's private property without justified cause.

Fourth. It is established that notification was made to the address (...).

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Classification and Qualification of the Infringement

In this case, the complaint dated 11/07/23 is examined, through which the "presence of video surveillance cameras that may affect your private property" is reported (folio no. 1).

Article 5.1 c) of the GDPR states the following:

Personal data shall be: "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

It should be noted that individuals are responsible for ensuring that the systems installed comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be directed towards private space, avoiding intimidating neighboring residents with such devices, as well as controlling transit areas without justified cause.

Moreover, such devices cannot capture images of public space, as this is the exclusive competence of the State Security Forces and Corps, under the terms of the current LO 4/1997, August 4, which regulates the use of video cameras by the Security Forces and Corps in public places.

It is worth noting that even in the case of a "simulated" camera, it must be preferably oriented towards private space, as it is considered that such devices may affect the privacy of third parties, who feel intimidated by the belief that they are subject to permanent recording.

Individuals cannot install devices for capturing images of public space and/or the transit of third parties, except in the cases permitted by the regulations.

III

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In accordance with the evidence available in this warning procedure, it is considered that the respondent has a camera system that affects the property of the claimant.

From the examination of the documentary evidence provided by the claimant, it is inferred that the device(s) are poorly oriented towards the claimant's property, affecting their right to privacy and the right to the protection of personal data.

In the case at hand, the installation of a camera system is an undisputed fact, as is the orientation towards an area in conflict between the parties with opposing interests, which implies a logical reasoning towards the processing of personal data as a measure, thus the set of indications undermines the presumption of innocence, especially given the reluctance to provide any evidence that would allow for the verification of the legality of the system in question (e.g., criteria for circumstantial evidence STS (2nd Chamber) of December 22, rec. No. 10279/2021).

The known facts constitute an infringement attributable to the respondent under Article 5.1 c) of the GDPR, as previously cited.

Article 83.5 of the GDPR states: "Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; Article 72, paragraph 1 of the LOPDGDD (LO 3/2018, December 5) regarding the statute of limitations for very serious infringements "shall prescribe after three years" and in particular the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5

of Regulation (EU) 2016/679.

IV

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) to issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)"

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Furthermore, Article 64 of the LOPDGDD, which regulates the "Initiation of the procedure and duration," states in its third paragraph that:

"3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After that period, it shall expire, and consequently, the file of actions shall occur.

The provisions of the second and third paragraphs of paragraph 2 of this article shall apply in this case."

V

Adoption of measures

The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

The respondent must clarify everything related to the presence of cameras towards neighboring properties, providing a screenshot (e.g., date and time) of what is captured in their case with the same or providing a photograph of the reorientation of the camera in question; reminding that if the lands are under discussion, only the private property over which there is no such judicial dispute can be captured.

It is noted that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and assessed the criteria for the graduation of the sanctions whose existence has been established,

the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1 c) of the GDPR, classified under Article 83.5 of the GDPR.

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SECOND: TO ORDER B.B.B., with NIF ***NIF.1, pursuant to Article 58.2.d) of the GDPR, within a period of ONE MONTH from the date this resolution becomes final and enforceable, to provide evidence of having complied, if applicable, with the following measure:

- Provide evidence that it has reoriented and/or removed, if applicable, the camera(s) towards its private property, providing documentary proof (date and time) that certifies what is captured by the same or a photograph of the windows without any device.

THIRD: NOTIFY this resolution to Ms. B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that certifies the effective filing of the administrative contentious appeal. If the Agency does not have knowledge of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

1403-16012024

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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